

FOR NEW LICENSES AND TRANSFER
LICENSE AND/OR PERMIT APPLICATION
FOR LIQUOR, COUNTY MALT BEVERAGE, LIMITED, WINERY OR MICROBREWERY

To be completed by the City, Town or County Clerk:			Formerly Held by: <u>Cloud 9, Inc. - Wyo. Liquor License 35</u>	
Date Filed: <u>3/21/16</u> <u>MC 134347</u>	Annual Fee	Prorated Fee	Applicant: <u>Sam's West, Inc.</u>	
Basic Fee: \$	\$	\$	Trade Name (dba): <u>Sam's Club</u>	
Add'l Dispensing Room Fee:	\$	\$	Premise Address: <u>1948 Dell Range Blvd.</u>	
Transfer Fee: \$	<u>100.00</u>		Number & Street	
Total License Fee	\$ <u>100.00</u>	\$	<u>Cheyenne</u>	<u>WY</u> <u>82009</u> <u>Laramie</u>
Collected			City	State Zip County
Publishing Fee Collect: \$	<u>100.00</u>		Mailing Address: <u>1948 Dell Range Blvd.</u>	
Required Attachments Received:	Yes ☒		Number & Street or P.O. Box	
Advertising Dates(2 wks): <u>April 15, 22, 29, 16</u>			<u>Cheyenne</u>	<u>WY</u> <u>82009</u>
Hearing Date: <u>May 19, 2016</u>			City	State Zip
Local Licensing Number: <u>35</u>			Business Telephone Number: <u>(307) 637-3771</u>	
For the license term: <u>upon issuance</u>			Fax Number: <u>()</u>	
Through: <u>March 31, 2017</u>			E-Mail Address: <u>cnelso.s06430.us@samsclub.com</u>	
A copy must be immediately forwarded to: State of Wyoming Liquor Division 6601 Campstool Rd. Cheyenne WY 82002-0110			LICENSING AUTHORITY: Begin publishing promptly. As W.S. 12-4-104(d) specifies: NO LICENSING AUTHORITY SHALL APPROVE OR DENY THE APPLICATION UNTIL THE LIQUOR DIVISION HAS CERTIFIED THE APPLICATION IS COMPLETE.	

FILING FOR	TYPE OF LICENSE OR PERMIT (CHOOSE ONLY ONE)	To Assist the Liquor Division with scheduling inspections:
☐ NEW	☒ RETAIL LIQUOR LICENSE	DO YOU OPERATE?
☒ TRANSFER LOCATION	☐ on-premise only (Bar)	☒ FULL TIME (e.g. Jan through Dec)
☒ TRANSFER OWNERSHIP	☒ off-premise only (Package Store)	☐ SEASONAL/PART-TIME
	☐ combination on/off premise (Both)	(specify months of operation)
FILING IN (CHOOSE ONLY ONE)	☐ RESTAURANT LIQUOR LICENSE	from _____ to _____
☒ CITY OF <u>Cheyenne</u>	☐ RESORT LIQUOR LICENSE	DAYS OF WEEK (e.g. Mon through Sat)
☐ COUNTY OF _____	☐ COUNTY RETAIL or SPECIAL MALT BEVERAGE PERMIT	<u>Monday - Sunday</u>
	☐ VETERANS CLUB	HOURS OF OPERATION (e.g. 10a - 2a)
FILING AS (CHOOSE ONLY ONE)	☐ FRATERNAL CLUB	<u>Monday-Friday 10:00am-8:30pm</u>
☐ INDIVIDUAL ☐ LLC	☐ GOLF CLUB	<u>Saturday 9:00am-8:30pm</u>
☐ PARTNERSHIP ☐ LLP	☐ SOCIAL CLUB	<u>Sunday 10:00am-6:00pm</u>
☒ CORPORATION	☐ MICROBREWERY	
☐ LTD PARTNERSHIP	☐ WINERY	
☐ ASSOCIATION	☐ BAR AND GRILL	
☐ ORGANIZATION	☐ LOCATED WITHIN 5 MILES OF CITY (County License only)	

1. Location of License:

- (a) Give a description of the dispensing room and state where it is located in the building (e.g. 10 x 12 room in SE corner of 1st floor of building). If the building is not in existence, provide the location and an architect's drawing or suitable plans of the room and premises to be licensed: W.S. 12-4-102(a)(i): **(Please submit a drawing of the establishment that includes the dispensing room)**
- 1948 Dell Range Blvd., Cheyenne, WY 82009. Please see architect's drawing showing the exact location within store, attached as Attachment 1.
- As demonstrated by Attachment 1, the Liquor box will be located on the West side of building and approximately 73' X 25' Room
- (b) If Winery or Microbrewery, also list manufacturing facility.(e.g. MFG: 10' X 12' room in SW portion of bldg.)

(c) Do you have an additional dispensing room? ☐ YES ☒ NO If yes, provide description and location:

(d) Provide the legal description and the zoning of the site where the applicant will conduct business **(CB)**
 Zoning is Commercial. The legal description is Cole Fire Station Addition, 4th Filing, Lot 1, Block 1, City of Cheyenne, Laramie County, Wyoming.

2. Do you W.S. 12-4-103 (a) (iii):

- (1) OWN the building in which sales room is located? ☐ YES (own)
- (2) LEASE the building in which sales room is located? ☒ YES (lease)

(A) DATE lease expires May 1, 2017 (renewable) located on page 2 paragraph 2 of lease document. *page 14 paragraph 26 renewal section*

(B) Provision for SALE of alcoholic or malt beverages located on page 1 paragraph 7.A of lease. *of 4th Amendment*

NOTE: Attach a true copy of the lease to application. Lease MUST contain provision for SALE OF ALCOHOLIC or MALT BEVERAGES and be valid THROUGH the TERM OF THE LICENSE W.S. 12-4-103(a)(iii).
 (Please see Paragraph 1 of the Fourth Amendment to Lease Agreement).

3. Have you already assigned, leased, transferred or do you intend to assign, lease, transfer, contract or in any other manner agree with any person or firm other than yourself as licensee to operate and assert control or partial control of the license and the licensed room to carry on the licensed liquor business? ☐ YES ☒ NO
4. Does any manufacturer, brewer, rectifier, wholesaler, or through a subsidiary affiliate, officer, director or member of any such firm: W.S. 12-5-401, 12-5-402, 12-5-403
- (a) Hold any interest in the license applied for? ☐ YES ☒ NO
- (b) Furnish by way of loan or any other money or financial assistance for purposes hereof in your business? ☐ YES ☒ NO
- (c) Furnish, give, rent or loan any equipment, fixtures, interior decorations or signs other than standard brewery or manufacturer's signs? ☐ YES ☒ NO
- (d) If you answered YES to any of the above, explain fully and submit any documents in connection therewith:
-
5. Does applicant have any interest or intent to acquire an interest in any other retail liquor license to be issued by this licensing authority? W.S. 12-4-103(b) ☐ YES ☒ NO
If "YES", explain: _____
6. Is applicant a mayor, member of a city or town council, or member of the board of county commissioners within the jurisdiction of this licensing authority? W.S. 12-4-103(a)(i) ☐ YES ☒ NO
7. Is applicant employed by the State, City or Town, or County as a law enforcement officer, or hold office as a law enforcement officer through election? W.S. 12-4-103(a)(ii) ☐ YES ☒ NO

RESTAURANT OR BAR AND GRILL LICENSE: Complete questions 8(a) and 8(b):

8. (a) Have you submitted a valid food service permit upon application? ☐ YES ☐ NO
W.S. 12-4-407(a) W.S. 12-4-413(a)
- (b) Was your dispensing room for alcoholic and/or malt beverages in existence and open for consumption purposes prior to February 1, 1979? W.S. 12-4-410(b) ☐ YES ☐ NO ☐ N/A

RESORT LICENSE: Complete questions 9(a) through 9(c):

9. (a) Is the actual valuation of the resort complex at least one million dollars, or have you committed or expended at least one million dollars (\$1,000,000.00) on the complex, excluding the value of the land? W.S. 12-4-401(b)(i) ☐ YES ☐ NO
- (b) Does the resort complex include a restaurant and a convention facility which will seat at least one hundred (100) persons? W.S. 12-4-401(b)(ii) ☐ YES ☐ NO
- (c) Does the resort complex include motel or hotel accommodations with at least one hundred (100) sleeping rooms? W.S. 12-4-401(b)(iii) ☐ YES ☐ NO

MICROBREWERY AND/OR WINERY LICENSE: Complete questions 10 through 11:

10. Is premise to be co-existent with a retail, restaurant, resort or bar and grill liquor license? W.S. 12-4-412(b)(iii) ☐ YES ☐ NO
- If "YES", please specify type: ☐ Microbrewery ☐ Winery ☐ Retail
☐ Restaurant ☐ Resort ☐ Bar & Grill:

11. (a) Do you self distribute your products? ☐ YES ☐ NO
- (b) Do you distribute your products through an existing malt beverage wholesaler? ☐ YES ☐ NO

ORGANIZATION AND/OR CLUB LICENSE: Complete questions 12 through 15 as applicable:**12. FRATERNAL CLUBS W.S. 12-1-101(a)(iii)(B)**

- (a) The name and address of the grand lodge or national organization is: _____
- (b) Does lodge or fraternal organization hold a charter from a national organization or national grand lodge? ☐ YES ☐ NO
- (c) Has the fraternal organization been actively operating in at least thirty-six (36) states? ☐ YES ☐ NO
- (d) Has the fraternal organization been actively in existence for at least twenty (20) years? ☐ YES ☐ NO

13. VETERANS CLUBS W.S. 12-1-101(a)(iii)(A):

- (a) The name and address of the National Veterans organization is: _____
- (b) Has the Veteran's organization been chartered by the Congress of the United States for patriotic, fraternal or benevolent purposes? ☐ YES ☐ NO
- (c) Is the membership of the Veteran's organization comprised only of Veterans and its duly organized auxiliary? ☐ YES ☐ NO

14. SOCIAL CLUBS W.S. 12-1-101(a)(iii)(E):

- (a) Do you have more than one hundred (100) bona fide members who are residents of the county in which the club is located? ☐ YES ☐ NO
- (b) Is the club incorporated and operating solely as a nonprofit organization under the laws of this state? ☐ YES ☐ NO
- (c) Is the club qualified as a tax exempt organization under the Internal Revenue Service? ☐ YES ☐ NO
- (d) Has the club been in continuous operation for a period of not less than one (1) year? ☐ YES ☐ NO
- (e) Has the club received twenty-five dollars (\$25.00) from each bona fide member as recorded by the secretary of the club and are club members at the time of this application in good standing by having paid at least one (1) full year in dues? ☐ YES ☐ NO
- (f) Does the club hold quarterly meetings and have an actively engaged membership carrying out the objectives of the club? ☐ YES ☐ NO
- (g) Have you filed a true copy of your bylaws with the local licensing authority and the Wyoming Liquor Division? ☐ YES ☐ NO
- (h) Has at least fifty one percent (51%) of the membership signed a petition indicating a desire to secure a Limited Retail Liquor License?
(THE PETITION MUST BE ATTACHED TO APPLICATION) ☐ YES ☐ NO
- (i) Have you filed with the licensing authority and the Wyoming Liquor Division a detailed statement of your activities during the preceding year which were undertaken or furthered in pursuit of the objectives of the club, along with an itemized statement expended for such activities? ☐ YES ☐ NO

15. GOLF CLUBS W.S. 12-1-101(a)(iii)(D):

- (a) Do you have more than fifty (50) bona fide members? ☐ YES ☐ NO
- (b) Do you own, maintain, or operate a bona fide golf course together with clubhouse? ☐ YES ☐ NO

16. (a) If applicant is an Individual or Partnership: State the name, date of birth and residence of each applicant or partner, if the application is made by more than one individual or by a partnership.**If the application is for a Club: State the name, date of birth and residence of each officer.**

True and Correct Name	Date of Birth	DONOT LIST PO BOXES Residence Address No. & Street City, State & Zip	Residence Phone Number	Have you been a DOMICILED resident for at least 1 year and not claimed residence in any other state in the last year?	Have you been Convicted of a Felony Violation?	Have you been Convicted of a Violation Relating to Alcoholic Liquor or Malt Beverages?
				YES ☐ NO ☐	YES ☐ NO ☐	YES ☐ NO ☐
				YES ☐ NO ☐	YES ☐ NO ☐	YES ☐ NO ☐
				YES ☐ NO ☐	YES ☐ NO ☐	YES ☐ NO ☐
				YES ☐ NO ☐	YES ☐ NO ☐	YES ☐ NO ☐
				YES ☐ NO ☐	YES ☐ NO ☐	YES ☐ NO ☐
				YES ☐ NO ☐	YES ☐ NO ☐	YES ☐ NO ☐
				YES ☐ NO ☐	YES ☐ NO ☐	YES ☐ NO ☐

(If more information is required, list on a separate piece of paper and attach to this application.)

- (b) If the applicant is a Corporation, Limited Liability Company, Limited Liability Partnership or Limited Partnership: State the name, date of birth and residence of each stockholder holding, either jointly or severally, ten percent (10%) or more of the outstanding and issued capital stock of the corporation, limited liability company, limited liability partnership, or limited partnership, and every officer, and every director.**

True and Correct Name	Date of Birth	DONOT LIST PO BOXES Residence Address No. & Street City, State & Zip	Residence Phone Number	No. of Years in Corp or LLC	% of Stock Held	Have you been Convicted of a Felony Violation?	Have you been Convicted of a Violation Relating to Alcoholic Liquor or Malt Beverages?
						YES ☐ NO ☐	YES ☐ NO ☐
Walmart Stores, Inc.		702 SW 8th Street Bentonville, AR 72716	479-204 2227	32 Years	100%	YES ☐ NO ☒	YES ☐ NO ☒
*there are no shareholders holding 10% or more of the stock of Walmart Stores, Inc.						YES ☐ NO ☐	YES ☐ NO ☐
						YES ☐ NO ☐	YES ☐ NO ☐
						YES ☐ NO ☐	YES ☐ NO ☐
						YES ☐ NO ☐	YES ☐ NO ☐

(If more information is required, list on a separate piece of paper and attach to this application.)

OATH OR VERIFICATION

(Requires signatures by ALL Individuals, ALL Partners, ONE (1) LLC Member, or TWO (2) Corporate Officers or Directors except that if all the stock of the corporation is owned by ONE (1) individual then that individual may sign and verify the application upon his oath, or TWO (2) Club Officers.) W.S. 12-4-102(b)

Under penalty of perjury, and the possible revocation or cancellation of the license, I swear the above stated facts, are true and accurate.

STATE OF ARKANSAS)

COUNTY OF BENTON)

SS.

3/9/16

Before Me, Shawn Woods Glen Fewkes (specify)
(Printed name of Notary or other officer authorized to administer oaths)

a Notary Public, Officer authorized to administer oaths in and for
Benton County, State of ARKANSAS personally appeared

Andrea Lazenby, Amy Thrasher name he/she being first duly sworn
(Insert Names)

(Seal)

by me upon his oath, says that the facts alleged in the foregoing instrument are true.
C. GLEN FEWKES JR
Benton County
Commission Number 12399028
Notary Public - Arkansas
My Commission Expires May 28, 2024

My Commission expires: 5/28/24

1. [Signature]
2. Andrea Lazenby, Assistant Secretary
3. Amy Thrasher Assistant Secretary
4. Amy Thrasher, Assistant Secretary

Witness my hand and official seal:

[Signature]
(Notary Public or other officer authorized to administer oaths)

Title Notary Public

Dated: 3/9/16

REQUIRED ATTACHMENTS:

- (a) Attach any lease agreements W.S. 12-4-103 (a) (iii).
- (b) If the building is not in existence, an architect's drawing or suitable plans of the room and the premises to be licensed must be attached W.S. 12-4-102 (a) (i).
- (c) A statement indicating the financial condition and financial stability of the applicant W.S. 12-4-102 (a) (vi).
- (d) Restaurant or Bar & Grill Liquor License applicants must include a copy of the CURRENT food service permit W.S. 12-4-407 (a) or 12-4-413 (a).
- (e) Include a drawing of the dispensing room W.S. 12-5-201 (a).
- (f) Check or bank draft as payment for the application and publishing the notice of application (Direct billing is permissible for publication fees) W.S. 12-4-101-4 (a).
- (g) If transferring a license from one ownership to another, a form of assignment from the current licensee to the new applicant authorizing the transfer W.S. 12-4-601 (b).

ADVERTISING REQUIREMENTS W.S. 12-4-104(a):

When an application for a license, permit, renewal or any transfer of location or ownership thereof has been filed with a licensing authority, the clerk shall promptly prepare a notice of application, place the notice conspicuously upon the premises shown by the application as the proposed place of sale and public the notice in a newspaper of local circulation once a week for two (2) consecutive weeks. The notice shall state that a named applicant has applied for a license, permit, renewal or transfer thereof, and that protests against the issuance, renewal, or transfer of the license or permit will be heard at a designated meeting of the licensing authority.

FOR LIQUOR DIVISION USE ONLY		
Reviewer	Initials	Date
Agent:		
Chief:		
Asst.:		



1948 Dell Range Blvd.
Cheyenne, WY 82009
Phone: (307)637-3771

March 14, 2016

Mayor Richard Kasen and Members of the City Council
2101 O'Neil Ave.
Cheyenne, WY 82001

Re: Application for Transfer of Retail Liquor License

Dear Mayor Kasen and Members of the City Council,

Sam's West, Inc. ("Sam's Club") is pleased to submit its Application for the Transfer of a Retail Liquor License. Sam's Club has entered into an agreement with Cloud 9, Inc. to purchase its Wyoming Retail Liquor License No. 35. Sam's Club's application and the required attachments are provided with this letter, and Sam's is seeking approval of the transfer of ownership as well as the location of the Liquor License.

For background purposes, Sam's Club in Cheyenne is a membership only warehouse club, with over 29,000 members in Cheyenne, Wyoming. As many of you know, our club offers electronics, apparel, home furnishings, with a full line of groceries, including fresh produce, meat and dairy products, and dry goods. Our location also provides photo, optical, and pharmacy services. Significantly, the liquor license Sam's Club is seeking to purchase is currently being utilized in a building adjacent to the Sam's Club warehouse. Thus, if approval of the transfer is obtained from the City Council, the location of its new place of use will be only a few hundred yards from its current place of use.

I am the manager of the Cheyenne Sam's Club. My professional background includes more than 12 years in the field of operations and business management. My career began with Sam's Club in 2003, and has expanded across the Midwest, including: Nebraska, South Dakota, Colorado, and now Wyoming. I began as an hourly associate at 20 years of age in 2003, and was later promoted to an Assistant Manager and have held the roles of member service manager, fresh produce manager, membership manager, hardlines manager, and grocery manager. I came to Cheyenne in 2013 and lead a Sam's Club team of 140 associates, including 6 members of management. I am thrilled to have this company as a lifelong employer which shares my belief in the value of investing in my associates and helping them to reach their full potential. In my spare time, I enjoy fishing, hiking and spending time with my growing family. My wife is a Registered Nurse at the VA hospital and we recently returned from Africa where we adopted a 6 year old boy, who is our first child.

Sam's is committed to building strong communities and has been a part of Cheyenne since 1993, investing as an employer, contributing to the economy, and serving the people of the community. Attached is a "fact sheet" which sets forth the Sam's Club involvement in this community.

Mayor Kasen and City Council Members

March 14, 2016

Page 2 of 2

As a retailer, Sam's is committed to the responsible sale of adult beverages and does so in all stores where Sam's or Wal-Mart sells restricted products. Sam's Club and Wal-Mart have a strong track-record in Wyoming at its five locations which operate with a liquor license. Associates receive intensive and regular training and are supported by our in-store security teams, who are also highly trained with many having backgrounds in law enforcement. Sam's is already a Member of the statewide Wyoming Liquor Dealer's Association. Nationally, we have worked with the Foundation for Advancing Alcohol Responsibility, an organization focused on eliminating underage drinking and drunk driving.

Sam's Club is uniquely positioned to provide additional security for liquor sales. An individual must be at least eighteen years old to become a member and must provide a date of birth with their application. Identification is checked on all age-restricted product purchases and every member is required to swipe his or her membership card for every purchase.

We have included 8 attachments to our application:

Attachment 1: Liquor Box – Architect Drawings and Description

Attachment 2: Lease Agreement with Amendment

Attachment 3: Financial Statements (CONFIDENTIAL)

Attachment 4: Plan of Operation

Attachment 5: Authorization and Affidavit signed by all Officers (including chart)

Attachment 6: Certificate of Good Standing

Attachment 7: List of All Officers and Directors

Attachment 8: UCC filings

Attachment 9: Letter from Cloud 9, Inc. requesting transfer approval from governing body.

Attachment 10: Assignment from current Licensee

I am committed to Sam's Club being a good steward of this license and would appreciate your vote in approving our application for the transfer of ownership and location. I am happy to answer any questions you may have or provide any additional or supporting information you request.

Sincerely,

Cody Nelson

Club Manager, Sam's Club Cheyenne

Sam's West, Inc.

Enclosures

Wyoming at a Glance

2014 by the Numbers



\$31.1*
MILLION
Collected
on behalf of
Wyoming



\$14.7*
MILLION
Spent with
suppliers
in-state



\$4.4*
MILLION
Paid in state
and local
taxes



2,430
Supplier
jobs
supported
in-state



\$6.5
MILLION
Total giving
in Wyoming,
including
customer
donations

* Figures are for all Wyoming Walmart retail units,
including Sam's Club

* Supplier figures provided by Dun & Bradstreet for FYE
2015 (February 2014 - January 2015)

* Collected on behalf of the state of Wyoming as part of
transactional sales of taxable goods and service for FYE
2015

Our Commitment to Responsible Adult Beverage Sales

- In Cheyenne, club members are consistently telling us they want the added convenience of a one-stop shopping experience.
- By offering our club members an assortment of beer, wine and spirits at an affordable price, the Cheyenne Sam's Club will meet shoppers' needs and expectations.
- Based on our experience selling beer, wine and spirits inside our stores in other states, we recognize the importance of stringent policies and play an active role in establishing industry best practices for the sale of adult beverages.
- Walmart and Sam's Club have an experienced asset protection team comprised of individuals often possessing a background in military or law enforcement. The team collaborates with state, local and federal agencies to ensure best retail practices and undergoes annual training on adult beverage compliance.
- Walmart and Sam's Club take adult beverage sales seriously and are committed to selling these products in a responsible manner.

Sam's Club Impact in Cheyenne in 2014

\$12,873

Store-level cash
donations by
Cheyenne
Sam's Club

508

Volunteer hours
from Cheyenne
associates

32,901

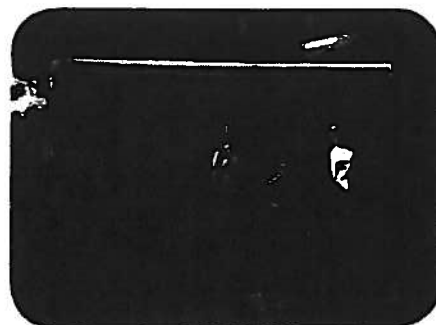
Pounds of food donated to local
Feeding America affiliates

140

Associates
employed
at Cheyenne
Sam's Club

\$12.50

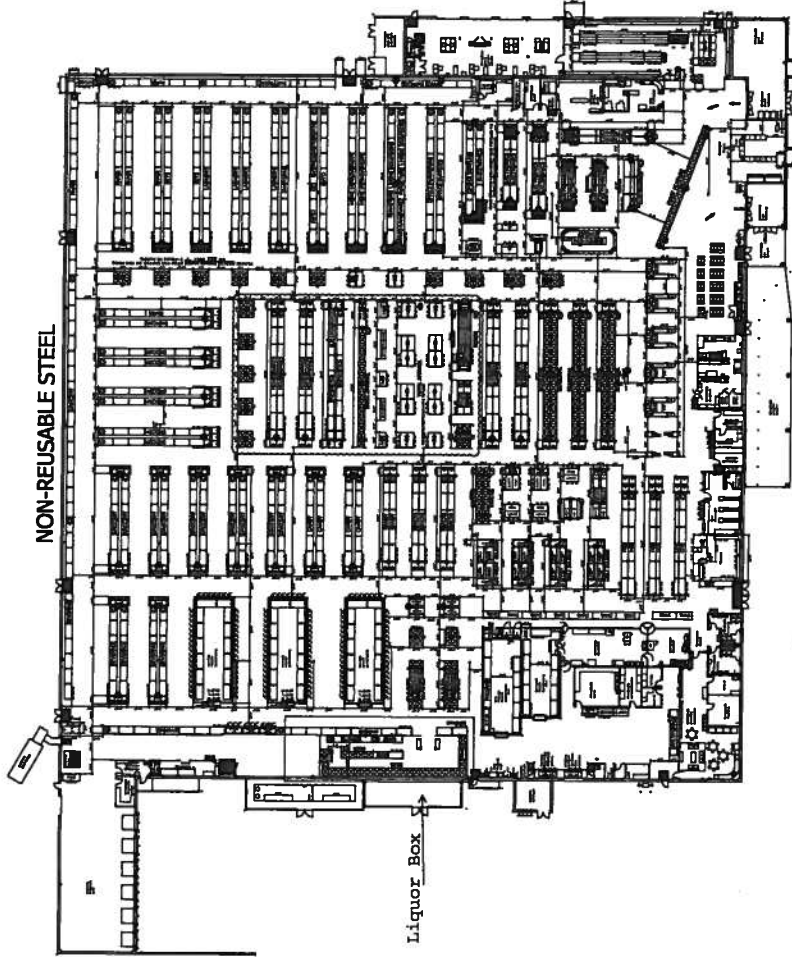
Average
wage for
Cheyenne Sam's
Club associates



ATTACHMENT 1

Liquor Box – Architect Drawings

NON-REUSABLE STEEL



MEZZANINE PLAN
2 1/2" = 1'-0"



FLOOR PLAN
1 1/2" = 1'-0"

THESE ARE THE STANDARD SPECIFICATIONS FOR THE PROJECT.

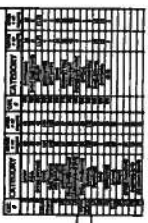
NO.	REVISION	DATE	BY	CHKD.
1	ISSUED FOR PERMIT	10/1/88	...	...
2	...	...	...	...
3	...	...	...	...
4	...	...	...	...
5	...	...	...	...

ALL 144 INCH HIGH STEEL BEAMS ARE TO BE ORDERED FOR HEAVY CAPACITY LOADS.

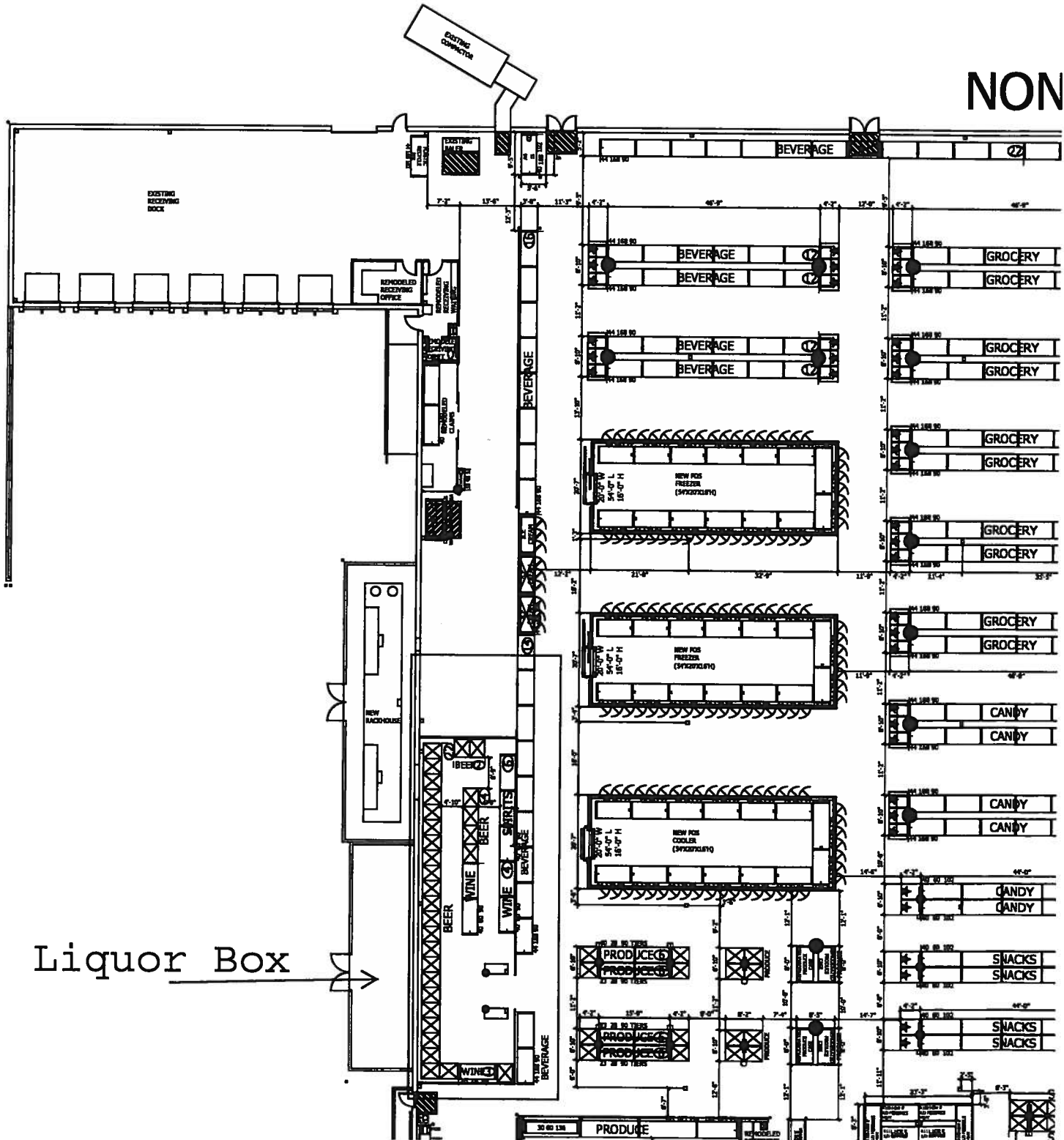
REVISIONS

NO.	REVISION	DATE	BY	CHKD.
1	ISSUED FOR PERMIT	10/1/88	...	...
2	...	...	...	...
3	...	...	...	...
4	...	...	...	...
5	...	...	...	...

SCOPE OF WORK



NON



.....

Liquor Box

6430

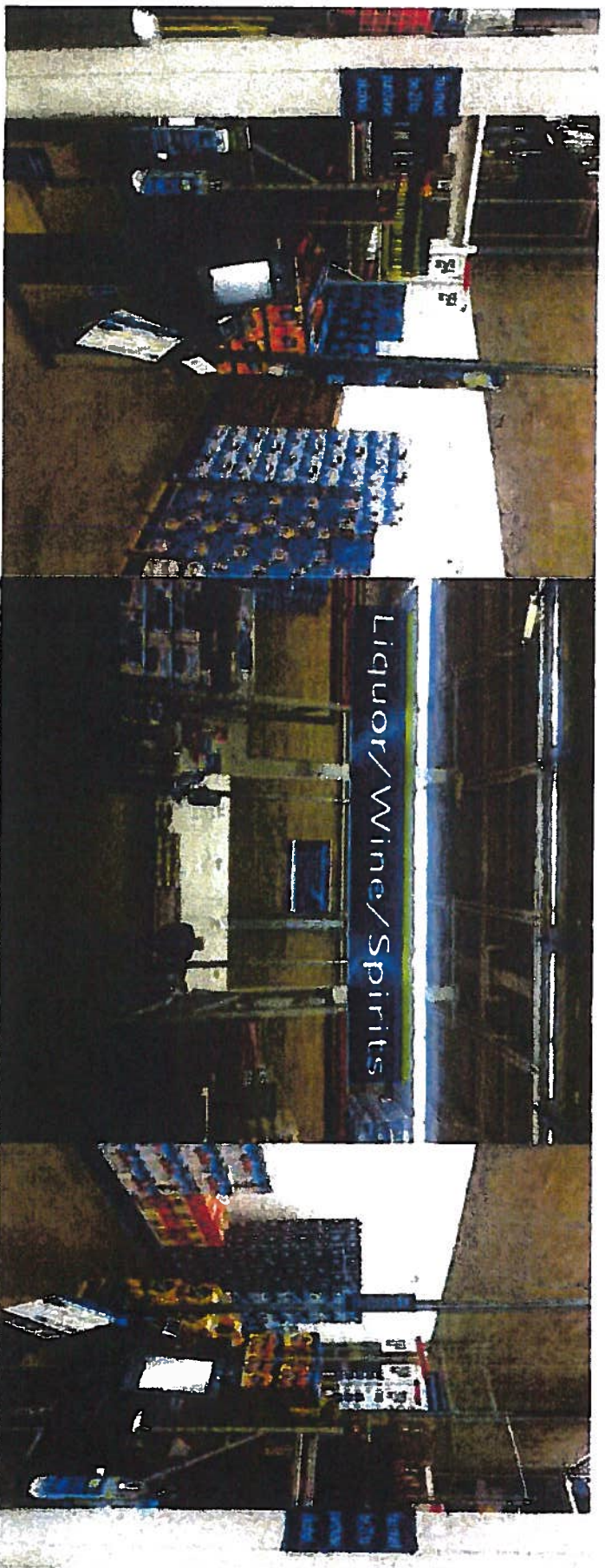
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Liquor Box 6430



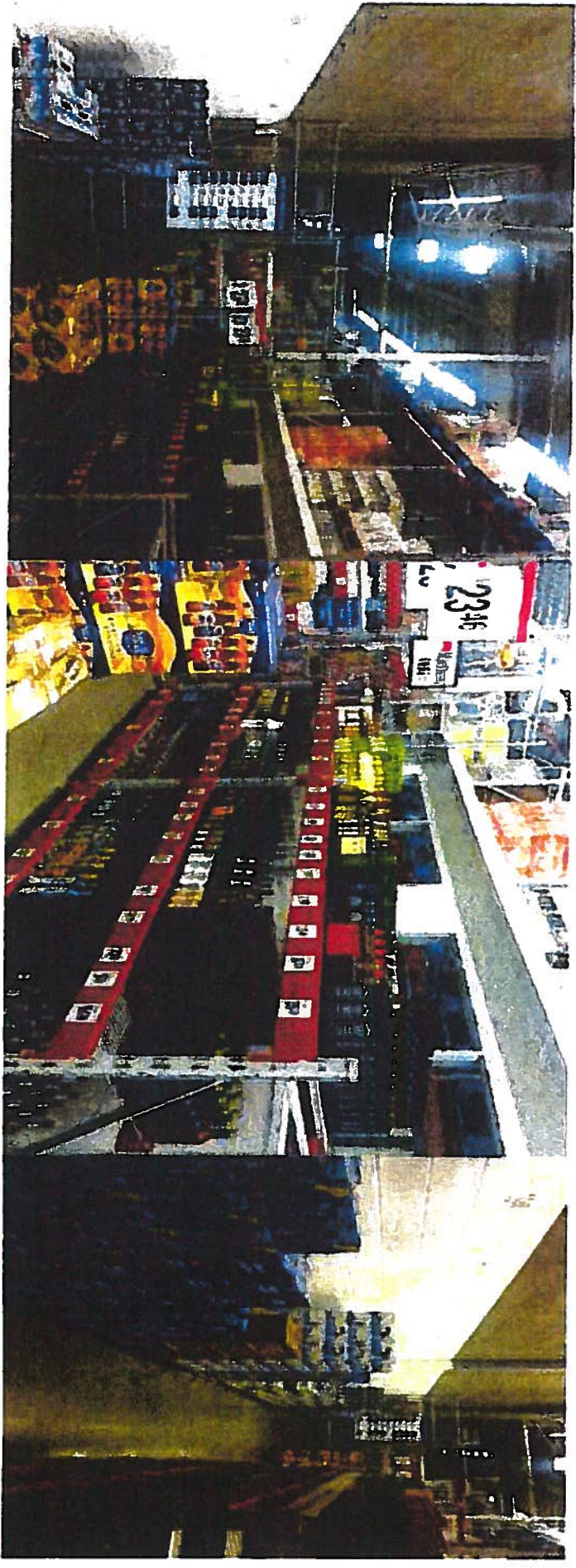


Liquor Box 6430





Liquor Box 6430



ATTACHMENT 2

Lease Agreement with Amendment

Remainder of Lease Agreement

is on file with the

City Clerk's Office.

LEASE AGREEMENT

This Lease Agreement is executed in four (4) duplicate originals and made as of the 1st day of MAY, 1992 by and between CHEYENNE LIMITED LIABILITY COMPANY, of 1001 Cherry Street, Suite 308, Columbia, Missouri 65201 (hereinafter "Lessor"), and WAL-MART STORES, INC., a Delaware corporation, of 702 S. W. Eighth Street, Bentonville, Arkansas 72716, (hereinafter "Lessee").

WITNESSETH:

1. DEMISED PREMISES:

A. Lessor, in consideration of the covenants and agreements hereinafter contained, does hereby demise and lease to Lessee a 135,780 square foot building and the garden center attached thereto (hereinafter the "Demised Premises") in the Shopping Center to be or being constructed on the real property described in Exhibit A attached hereto and made a part hereof (hereinafter the "Shopping Center"), to have and to hold during the Term (as defined in Paragraph 2). The Demised Premises and the Shopping Center are located in the City of Cheyenne, in Laramie County, Wyoming.

B. It is understood and agreed that throughout the Term of this Lease, Lessee and its agents, employees, customers, contractors, subtenants, licensees and concessionaires shall have a nonexclusive right to use the Common Areas (as defined in Paragraph 30) together with all improvements and appurtenances now and hereafter located therein, including, but not limited to the parking areas in the Shopping Center and the rights of entrance and exit over all streets, alleyways, parking lots upon and appurtenant to the Shopping Center, in common with the agents, employees and customers of other stores in the Shopping Center, for the purposes of ingress and egress on foot and by motor vehicles, for parking motor vehicles, for loading and unloading merchandise and for the display of merchandise. Lessee agrees that it shall observe reasonable regulations furnished in writing by the Lessor concerning the parking of employees' cars and the maintaining of an orderly flow of vehicular and pedestrian traffic in and about the Shopping Center.

2. **TERM:** The Term of this Lease and Lessee's obligation to pay Rent hereunder shall not commence until the earlier of (i) the date on which Lessee opens the Demised Premises for business with the public, or (ii) the date which is sixty (60) days following the completion of Lessee's building and related improvements by Lessor in accordance with the final approved plans and specifications and Lessor's delivery and Lessee's acceptance thereof (the "Commencement Date") and shall continue for a full term of twenty (20) years thereafter, subject, however, to the provisions of Paragraph 26 concerning extensions or renewals thereof. Lessee's obligation to accept possession of the building shall be subject to the provisions of Paragraph 6. As used herein, the term "Lease Year" shall have the following meanings: The first "Lease Year" shall be the period which commences on the Commencement Date of this Lease and terminates on the next-following January 31. Each subsequent Lease Year (other than the last Lease Year) shall be a period which commences on February 1 of one year and terminates on the next-following January 31. The last Lease Year shall be the period which commences on the last February 1



ATTACHMENT 4
Plan of Operation

Attachment 4

Plan of Operation

Sam's Club submits this Plan of Operation outlining the proposed manner in which the establishment will be operated.

A. Schedule of Hours of Operation:

Sam's Club intends to maintain hours of operation seven (7) days per week. Sam's Club's hours are as follows:

Monday-Friday	10:00 a.m. - 8:30 p.m.
Saturday	9:00 a.m. - 8:30 p.m.
Sunday	10:00 a.m. – 6:00 p.m.

B. Intended Uses of the Facility:

Sam's Club will use the facility for the sale of package liquor. It will not maintain a pour area in its establishment. As depicted by the architectural renderings attached to the application, Sam's Club intends to isolate the package sales area in a liquor box constructed to the City of Cheyenne's standards on the West side of the store. No person under the age of twenty-one (21) will be permitted to enter unless accompanied by a parent or guardian.

C. Alcohol Management:

Sam's will sell package liquor to its members. Currently, Sam's Club and Wal-Mart locations in Cody, Riverton, Laramie, Rock Springs and Casper (two locations) all sell package liquor to the public. Sam's and Wal-Mart maintain a "zero tolerance" policy on all age restricted products. To ensure compliance with the policy, the sale of any age-restricted products (including alcohol) automatically triggers a lock on the cash register until a valid birth date is entered. Furthermore, all sales associates are trained to check identification and any associate who sells to a customer that does not appear to be over 40 years of age without checking identification is subject to termination. Attached is a flow diagram which demonstrates a typical transaction involving the sale of an adult beverage and the safeguards that are in place at Wal-Mart and Sam's stores to ensure responsible sales of age-restricted products.

In addition to the safeguards in place for ensuring compliance, Sam's Club provides additional security for liquor sales. First, an individual must be at least eighteen years old to become a member of Sam's Club. Members must provide a date of birth with their application, which adds an additional security measure on purchased adult beverages. Second, identification is checked on age-restricted product purchases. Additionally, every member is required to swipe their membership card for every purchase.

Finally, in addition to limiting sales of adult beverages to age appropriate members only, Sam's Club hours of operation conclude at 8:30 pm. This is significantly less than many other liquor license holders and could further minimize underage access.

D. Crowd Control

Since the establishment will only sell package liquor for consumption off the premises, there will be no accumulation of crowds at the location of the alcohol sales.

E. Security

Sam's Club requires all alcohol to be paid for in the liquor area of the store only. Security cameras are located throughout the store and in the parking lot area, including at all existing entrances and exits. Sam's Club also has two employees assigned to asset protection for the facility.

At Walmart, we are committed to responsible sales of adult beverages.

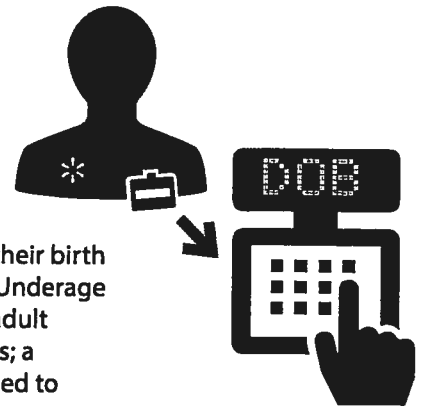
We have stringent, continuous policies, and we also play an active role in the Responsible Retailing Forum to help establish industry best practices for the sale of adult beverages and tobacco products. All Walmart associates are trained upon hiring regarding adult beverages policies and undergo annual refresher courses.

The following demonstrates a typical transaction involving the sale of an adult beverage and the safeguards that are in place along the way to ensure a responsible sale.

STEP 1

Cashier Signs into Register

When cashiers come on duty, they are required to sign into the register and enter their birth date, if it is not on file. Underage associates cannot sell adult beverages to customers; a supervisor must be called to complete the transaction.

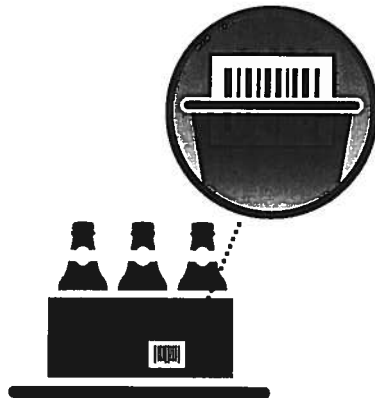


STEP 2

Cashier Scans the Item

If cashier is of-age to sell adult beverages, the register will prompt him/her to enter the customer's birth date if the customer appears under the age of 40 (under 27 at Sam's Club).

(If cashier is not of-age, a supervisor override will be prompted.)



STEP 3

Cashier Verifies ID

The cashier must enter the customer's birth date after visually verifying it on a government issued photo ID.

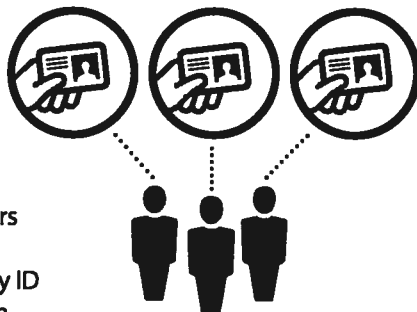


STEP 4

Cashier IDs Members of a Group

When a group of customers seeks to purchase adult beverages, the cashier may ID all members, within reason.

The cashier may make this judgment based on the customers' ages (for example, if all appear younger than 40) or their actions (for example, money is exchanged and some members leave the line). Guardians with children are excluded from this situation.

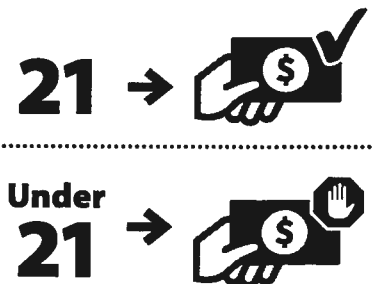


STEP 5

Sale is Approved or Denied

If the customer is 21 years of age and presents valid identification, the transaction will continue and can be completed.

If the customer is under 21 or does not have identification, the sale will be denied. Once the sale is denied, the register cannot be overridden. Any customer becoming hostile following this outcome will be asked to leave.



Walmart is committed to keeping adult beverages out of the hands of minors. The best way to curb underage drinking is to enforce the rules and regulations that have successfully kept adult beverages out of the hands of minors. Every Walmart store that sells adult beverages must adhere to strict rules that prevent minors from purchasing adult beverages, and we will continue to enforce these measures to the fullest extent.

Training

Walmart associates are given extensive training in the policies governing the sale of adult beverages, and underage associates are strictly banned from selling adult beverages. All Walmart associates who are responsible for selling adult beverages must complete an Adult Beverage Sales Compliance course. This includes a review of all laws related to the sale of adult beverages; instructions on how and when to ask for proper identification from customers; acceptable forms of identification; and an explanation of potential disciplinary measures for failing to comply with Walmart's adult beverage sales policies.

Underage cashier associates cannot sell any adult beverages to customers, and all cash registers at Walmart stores are equipped with advanced technology to prevent an underage associate from selling an adult beverage to any customer for any reason.

Accountability

Associates face disciplinary action for violating adult beverage sales policies, even when illegal sale does not occur, and any associate who sells an adult beverage to a minor faces termination. Any cashier associate who fails to properly follow all adult beverage sales policies faces disciplinary action up to and including termination, even in cases in which an illegal sale did not take place.

Any cashier associate found to have sold an adult beverage product to a minor will face immediate termination.

Evaluation

Compliance with adult beverage sales policies is an essential part of an associate's performance evaluation. An associate cashier's compliance with Walmart's adult beverage sales policies is an important component of the associate's overall performance evaluation. Supervisors will use all available data to evaluate an associate's performance in following corporate policies, including internal performance checks, external performance checks, law enforcement compliance checks, supervisory reports and customer complaints.

High Standards

Supervisors are held to high standards for ensuring sales of adult beverages follow all established rules, adding an extra layer of protection. All Walmart store managers and other supervisory personnel are responsible for monitoring and supervising staff to make sure they comply with all rules on the sale of adult beverages. Supervisors overseeing adult beverage sales must be of-age themselves. The rate of noncompliance in any supervisor's group of employees will be considered in the supervisor's future employment prospects.

Reporting

Managers must immediately report any alleged violations of adult beverage policies. Store managers must electronically report instances of alleged adult beverage sales violations to corporate headquarters within 24 hours. The Vice President of Operations Compliance maintains a record of all reported alleged violations and the results of investigations for at least three years from the date of occurrence.

Compliance

All Walmart stores are subject to random compliance checks. All stores are randomly checked for compliance of adult beverage sales policies, including "secret shopper" checks by external companies that are contracted with Walmart.

ATTACHMENT 6
Certificate of Good Standing

STATE OF WYOMING
Office of the Secretary of State

I, ED MURRAY, SECRETARY OF STATE of the STATE OF WYOMING, do hereby certify that according to the records of this office,

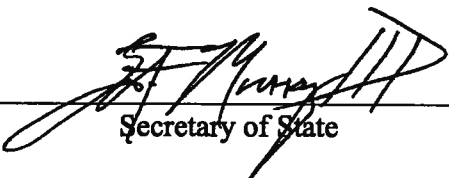
Sam's West, Inc.
is a
Profit Corporation

formed or qualified under the laws of Arkansas did on **September 4, 2002**, comply with all applicable requirements of this office. Its period of duration is Perpetual. This entity has been assigned entity identification number **2002-000439102**.

This entity is in existence and in good standing in this office and has filed all annual reports and paid all annual license taxes to date, or is not yet required to file such annual reports; and has not filed an Application for Certificate of Withdrawal.

I have affixed hereto the Great Seal of the State of Wyoming and duly generated, executed, authenticated, issued, delivered and communicated this official certificate at Cheyenne, Wyoming on this 16th day of February, 2016 at 10:22 AM. This certificate is assigned 019481534.





Secretary of State

Notice: A certificate issued electronically from the Wyoming Secretary of State's web site is immediately valid and effective. The validity of a certificate may be established by viewing the Certificate Confirmation screen of the Secretary of State's website <http://wyobiz.wy.gov> and following the instructions displayed under Validate Certificate.

ATTACHMENT 7

OFFICER CHART

True and Correct Name	DOB	Residence Address No. & Street, City, State and Zip	Residence Phone Number	Number of Years in Corp or LLC	% of stock held	Have you been convicted of a Felony Violation	Have you been Convicted of a Violation Relating to Alcoholic Liquor Malt Beverages
Doug McMillon	10/17/1966	1701 NE Tiger Blvd Bentonville, AR 72712	479-204-6141	20	The officer owns less than 1% Stock of Wal-Mart Stores, Inc., a public corporation	No	No
Cynthia P. Moehring	7/3/1966	2908 Red Fox Ridge Bentonville, AR 72712	479-204-6116	16	The officer owns less than 1% Stock of Wal-Mart Stores, Inc., a public corporation	No	No
Steven Zielske	7/29/1963	4904 South 44th Place Rogers, AR 72758	479-986-9502	15	The officer owns less than 1% Stock of Wal-Mart Stores, Inc., a public corporation	No	No
Amy Thrasher	2/16/1969	30 Watson Drive Vista, AR 72714	479-204-2026	26	The officer owns less than 1% Stock of Wal-Mart Stores, Inc., a public corporation	No	No
Andrea Lezenby	11/3/1982	808 Ireian Street AR 72745	479-204-9973	8	The officer owns less than 1% Stock of Wal-Mart Stores, Inc., a public corporation	No	No

True and Correct Name	DOB	Residence Address No. & Street, City, State and ZIP	Residence Phone Number	Number of Years in Corp or LLC	% of stock held	Have you been convicted of a Felony Violation	Have you been Convicted of a Violation Relating to Alcoholic Liquor Malt Beverages
Don Frieson	6/5/1958	26 S. Mission Hills Rogers, AR 72758	479-204-8805	11	The officer owns less than 1% Stock of Sam's West, Inc., a public corporation	No	No
Phyllis Perlin Harris	10/8/1960	7 Oxford Drive Rogers, AR 72758	479-204-6116	11	The officer owns less than 1% Stock of Sam's West, Inc., a public corporation	No	No
Steven Zielske	7/29/1963	4904 South 44th Place Rogers, AR 72758	479-986-9502	15	The officer owns less than 1% Stock of Sam's West, Inc., a public corporation	No	No
Amy Thrasher	2/16/1969	30 Watson Drive Vista, AR 72714	479-204-2026	26	The officer owns less than 1% Stock of Sam's West, Inc., a public corporation	No	No
Andrea Lazenby	11/3/1982	808 Irelan Street AR 72745 Lowell,	479-204-9873	8	The officer owns less than 1% Stock of Sam's West, Inc., a public corporation	No	No

ATTACHMENT 8

UCC FINANCING STATEMENTS

Secretary of State**State of Wyoming****Ed Murray****Business Division**

2020 Carey Avenue
Suite 700
Cheyenne, WY 82002-0020

Phone 307-777-7311
Fax 307-777-5339
Email: UCC@wyo.gov

UCC3 AMENDMENT**SEND ACKNOWLEDGEMENT TO:**

WESTLAND HOLDINGS, INC.
PO BOX 653
CHEYENNE, WY 82003
USA

NAME & PHONE OF CONTACT**WESTLAND HOLDINGS, INC.****Email****PAYLESS@AOL.COM****DOCUMENT INFORMATION****DOCUMENT ID****2016-61953036****FILING DATE****03/15/2016 11:56 AM****NUMBER OF ATTACHMENTS****0****RECORD TYPE****TERMINATION****DOCUMENT ID OF ORIGINAL FINANCING STATEMENT****2011-48841945****OLD DOCUMENT ID OF ORIGINAL FINANCING STATEMENT****INITIAL FILING DATE OF ORIGINAL FINANCING STATEMENT****11/15/2011 03:48 PM****FILER REFERENCE****TERMINATED ON****03/15/2016 11:56 AM**

Effectiveness of the Financing Statement identified above is terminated with respect to security interest(s) of the Secured Party authorizing this Termination Statement.

NAME OF SECURED PARTY(S) OF RECORD AUTHORIZING THIS AMENDMENT☐ Debtor Is Authorizing This Amendment**ORGANIZATION'S NAME****WESTLAND HOLDINGS, INC.****INDIVIDUAL'S SURNAME****FIRST PERSONAL NAME****ADDITIONAL NAME(S)/INITIAL(S)****SUFFIX**

Ed Murray

Business Division

2020 Carey Avenue
Suite 700
Cheyenne, WY 82002-0020

Phone 307-777-7311
Fax 307-777-5339
Email: UCC@wyo.gov

UCC FINANCING STATEMENT

SEND ACKNOWLEDGEMENT TO:

WESTLAND HOLDINGS, INC.
PO BOX 653
CHEYENNE, WY 82003
USA

NAME & PHONE OF CONTACT

JAMES DITZEL, 307-634-7234

Email

PAYLESS@AOL.COM

DOCUMENT INFORMATION

DOCUMENT ID 2011-48841945
ALT DESIGNATION DEBTOR/SECURED PARTY
RECORD TYPE UCC

INITIAL FILING DATE 11/15/2011 03:48 PM	NUMBER OF ATTACHMENTS 0
LAPSE DATE 11/15/2016 03:48 PM	
FILING STATUS ACTIVE	

FILER REFERENCE

DEBTOR(S) INFORMATION

NEW DEBTOR INFORMATION

ORGANIZATION'S NAME CLOUD 9, INC.			
INDIVIDUAL'S LAST NAME	FIRST NAME	MIDDLE NAME	SUFFIX
MAILING ADDRESS 1958 DELL RANGE #C	CITY CHEYENNE	STATE WY	POSTAL CODE 82009
COUNTRY USA			
TAX ID #: SSN OR EIN	TYPE OF ORGANIZATION CORP	JURISDICTION OF ORGANIZATION WY	ORGANIZATIONAL ID #, if any 1991-000269362 ☐ NONE

SECURED PARTY'S NAME(S) (or NAME of TOTAL ASSIGNEE OF ASSIGNOR S/P)

NEW SECURED PARTY INFORMATION

ORGANIZATION'S NAME WESTLAND HOLDINGS, INC.			
INDIVIDUAL'S LAST NAME	FIRST NAME	MIDDLE NAME	SUFFIX
MAILING ADDRESS PO BOX 653	CITY CHEYENNE	STATE WY	POSTAL CODE 82003
COUNTRY USA			

COLLATERAL INFORMATION *This FINANCING STATEMENT covers the following collateral:*

All assets, in the broadest possible definition, owned now or acquired hereafter, including but not limited to: Equipment, inventory and the City of Cheyenne issued Liquor License which is now known as #35. Collateral includes this license and any future licenses, renewals, additions, extensions, or substitutions.

ATTACHMENT 9
APPROVAL LETTER FROM CLOUD 9

March 13, 2016

Mayor Richard Kaysen and Members of the City Council
2101 O'Neil Ave.
Cheyenne, WY 82001

Re: Application for Retail Liquor License Transfer from Cloud 9, Inc. to Sam's West, Inc.

Dear Mayor Kaysen and Members of the City Council,

My name is Tom Kingham and I am the sole owner and shareholder of Cloud 9, Inc. ("Cloud 9"). I am writing to request that the Mayor and City Council approve the transfer of the Retail Liquor License No. 35 from Cloud 9 to Sam's West, Inc. ("Sam's Club"). I have reached an agreement to sell Cloud 9's liquor license, free and clear of all liens, to Sam's Club. I believe this is in the best interest of not only Sam's Club, but the City of Cheyenne.

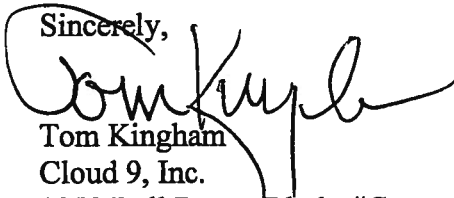
I purchased Cloud 9, Inc. in 2001. Five years ago I transferred my license to its present location, and changed the usage from a bar to a retail liquor store. I was 65 when I started my new business. My store, Cloud 9 Liquorland, has been a tremendous experience. However, now that I'm seventy, the energy and time it takes to run my business is over taxing me. I'm asking for your support in transferring my license.

As you know, this transfer involves transferring the license across the parking lot. Sam's Club projected sales indicate that the move will generate considerably more tax revenue for the City from the transfer of my license to Sam's Club. My experience at this location would indicate that a significant portion of that additional tax revenue comes from outside Cheyenne.

Due to the limited number of products offered, Sam's Club will have very little effect on other retailers. This transfer will not create an additional outlet, but an existing license that produces more revenue. Sam's Club would buy from the same sources as every other retailer, and at the same prices. Sam's Club will have no more advantage than other retailers.

While I will be contacting all of you in the near future, please do not hesitate to contact me if you have any questions or need any additional or supporting information.

Sincerely,



Tom Kingham
Cloud 9, Inc.
1958 Dell Range Blvd., #C
Cheyenne, Wyoming, 82009
(307) 631-4846

ATTACHMENT 10

Assignment from Current Licensee

**AUTHORIZATION OF TRANSFER AND ASSIGNMENT OF RETAIL LIQUOR
LICENSE**

Cloud 9, Inc.

This statement shall serve as authorization for the transfer of the City of Cheyenne, Wyoming Retail Liquor License No. 35 currently held by **CLOUD 9, INC.**, a Wyoming corporation, and Tom Kingham, President of Cloud 9, Inc., to **SAM'S WEST, INC.**, an Arkansas Corporation, with an address of 702 SW 8th Street, Bentonville, AR 72716-0500.

The undersigned hereby assign all right, title and interest they or it may have in and to the City of Cheyenne, Wyoming, Retail Liquor License No. 35 to Sam's West, Inc. pursuant to the Liquor License Purchase Agreement entered into by the above-named parties for good and valuable consideration for the transfer of said retail liquor license.

SELLER:

Cloud 9, Inc.,
A Wyoming Corporation

Signature: _____

Printed Name: Tom Kingham

Title: President

Date: February 26, 2016

STATE OF WYOMING)

COUNTY OF LARAMIE)

Sworn to and subscribed before me this 26th day of February, ~~2012~~ 2016 by Tom Kingham, as the President of Cloud 9, Inc.

Notary Public

My commission expires 10-22-16.

